RESOLUTION NO. 26-057

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF SOUTH EL MONTE, CALIFORNIA (i) CALLING AND GIVING NOTICE OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026, TO SUBMIT TO SOUTH EL MONTE VOTERS A MEASURE TO ENACT CITY COUNCIL TERM LIMITS; (ii) REQUESTING CONSOLIDATION OF SUCH ELECTION WITH THE COUNTY-ADMINISTERED GENERAL ELECTION TO BE HELD ON THE SAME DAY; (iii) REQUESTING THE COUNTY BOARD OF SUPERVISORS TO AUTHORIZE THE REGISTRAR-RECORDER/COUNTY CLERK FOR THE COUNTY OF LOS ANGELES TO PERFORM ELECTION SERVICES; AND (iv) SETTING PRIORITIES FOR FILING WRITTEN ARGUMENTS AND REBUTTALS REGARDING THE CITY MEASURE AND DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS

WHEREAS, the City of South El Monte ("City") does not currently limit the number of terms an individual may serve in an elected City office; and

WHEREAS, pursuant to Government Code Section 36502(b), any proposal to limit the number of terms a member of the City Council may serve on the City Council shall only apply prospectively and shall not become operative, unless it is submitted to City electors at a regularly scheduled election and a majority of the votes cast on the proposed term limits favor adoption of the term limits; and

WHEREAS, the City Council of the City of South El Monte ("City Council") desires to exercise its authority under Government Code Section 36502(b) by submitting to City voters a ballot measure which would establish term limits for members of the City Council; and

WHEREAS, pursuant to Elections Code Section 9280, the City Attorney is hereby authorized to prepare an impartial analysis of the proposed measure; and

WHEREAS, Elections Code Section 9282 sets forth the procedures for arguments in favor of or in opposition of any City measure; and

WHEREAS, Elections Code Section 9285 sets forth the procedures for rebuttal arguments; and

WHEREAS, it is necessary to secure the consent and order of the Board of Supervisors of the County of Los Angeles (the "Board of Supervisors") to effectuate the consolidation of the City's General Municipal Election of November 3, 2026, and the County-administered election of the same date; and

WHEREAS, at its Regular Meeting of June 2, 2026, the City Council approved Resolution No. 26-037, which (1) called for and gave notice of a general municipal election to be held on Tuesday, November 3, 2026, and (2) requested that the Los Angeles County Board of Supervisors authorize and direct the Los Angeles County Registrar-Recorder/County Clerk (the "County Registrar") to consolidate the City's November 3, 2026 election with the County-administered election(s) of the same date; and

WHEREAS, the City shall compensate the County Registrar for all necessary expenses incurred by the County Registrar in performing election services for the City; and

WHEREAS, the City Council approves the printing of the information for said election in the foreign languages requiring translation pursuant to the Voting Rights Act of 1965 and California Election Code Section 14201.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF SOUTH EL MONTE DOES HEREBY RESOLVE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. Recitals. The above recitals, and each of them, are true and correct.

SECTION 2. Ballot Measure Question. The City Council does hereby order that the Measure shall be presented and printed upon the ballot submitted to the qualified voters in the manner and form set forth herein. There shall be printed substantially the following ballot question in compliance with Elections Code Sections 9051, 13119(b) and 13247:

Term Limits Reform Measure Shall the terms served by the City Council in the City of South El Monte be limited to no more than four (4) four-year terms in their lifetime and where service for the unexpired balance of a vacated City Council seat (whether by appointment or election) will not count as service for a full four-year term even if such service is for less than four years in duration?	YES [ ] NO [ ]

The City Council further requests that the City be granted the letter designation "**CL**", if available, such that the Measure may be identified on the ballot as "**Measure CL**." If the letter designation "**CL**" is unavailable, it is requested that the following alternative letter designations be given in order of preference: "**CT**" or "**LT**," if available.

SECTION 3. Proposed Ordinance. The City Council approves the submission of the Measure to the voters of the City at the November 3, 2026 General Municipal Election, and concurrent with this Resolution shall approve the Ordinance that is the basis of the Measure for first reading in the form attached as **Exhibit "A"** attached to this Resolution, subject to the requirement that the Ordinance may not take effect unless the Measure is approved by majority of those casting votes on the Measure at the November 3, 2026 General Municipal Election. The text of the Ordinance shall be printed in the voter information portion of the sample ballot.

SECTION 4. Election Procedures.

A. The ballots to be used at the election shall be in form and content as required by law.

B. Pursuant to the requirements of Elections Code Sections 10002 and 10403, the City respectfully requests that the County's governing Board of Supervisors consent and agree to the following:

1. That the November 3, 2026 Municipal Election called by the City to present South El Monte voters with a City-initiated ballot measure seeking approval of the Ordinance be consolidated with the County-administered Statewide General Election of the same date; and

2. That the County's governing Board of Supervisors consent to having the County render full election services to the City as may be requested by the South El Monte City Clerk (the "City Clerk") with the understanding and agreement that the County will be reimbursed by the City in full for all services so provided; and

3. That the requested election services include: the preparation, printing and mailing of sample ballots and polling place cards; the establishment or appointment of precincts, polling places, and election officers, the preparation, printing, mailing and furnishing of vote-by-mail ballots, making such publications as are required by law in connection therewith; the furnishing of ballots, voting booths and other necessary supplies or materials for polling places; the canvassing of the returns of the election and the furnishing of the results of such canvassing to the City Clerk of the City of South El Monte and the performance of such other election services as may be requested by the City Clerk.

C. The City Clerk is authorized, instructed and directed to coordinate with the County of Los Angeles Registrar of Voters to procure and furnish any and all ballots, notices, printed matter and supplies, services, equipment and paraphernalia that may be necessary in order to properly and lawfully conduct the Election.

D. The polls for the Election shall be open at 7:00 a.m. the day of the Election and shall remain open continuously from that time until 8:00 p.m. of the same day when the polls shall be closed, pursuant to Elections Code Section 10242, except as provided in Elections Code Section 14401.

E. In all particulars not recited in this Resolution, the Election shall be held and conducted as provided by law for the holding of municipal elections in the City.

F. Notice of the time, place, and holding of the Election is given and the City Clerk is authorized, instructed, and directed to give further or additional notice of the election, in time, form, and manner as required by law.

G. All ballots shall be tallied at a central counting place and not at the precincts. Said central counting place shall be at a ballot counting center designated by the County.

H. The County is authorized to canvass the returns of the City's Municipal Election.

I. The City Clerk shall receive the canvass from the County as it pertains to the Election on the Measure, and shall certify the results to the City Council, as required by law.

J. The City's Municipal Election will be held and conducted in accordance with the provisions of law regulating such elections, including without limitation, Elections Code Section 10418.

SECTION 5. Subject to any logistical constraints imposed by the County Registrar by virtue of consolidation, the City also requests that all material appearing in the voters' pamphlet be translated from English to those relevant foreign languages that may be required in order to comply with the Voting Rights Act of 1965 and California Election Code Section 14201.

SECTION 6. Arguments, Rebuttals, and Impartial Analysis.

A. Direct Argument for and Against the Measure.

1. The City Council acknowledges Elections Code Section 9282(b) and 9287 which provide as follows:

    a. When a measure is placed on the ballot by a legislative body, the legislative body, or a member or members of the legislative body authorized by that body, or an individual voter who is eligible to vote on the measure, or bona fide association of citizens, or a combination of voters and associations, may file a 300 words or less written argument in favor of the measure; and

    b. If more than one argument in favor of a measure is submitted, the City Clerk shall give preference and priority, in the order named, to the arguments submitted by the following person(s) and entities: (A) the legislative body, or member or members of the legislative body authorized by that body; (B) an individual voter, or bona fide association of citizens, or combination of a voter(s) and associations, who are the bona fide sponsors or proponents of the measure; (C) a bona fide associations of citizens; and (D) individual voters who are eligible to vote on the measure.

    Provided such argument is submitted by or before the deadline for submitting ballot arguments, the City Council, by motion, reserves the right to designate and delegate one (1) or more of its members to author an argument in favor of the City's measure and recognition of Elections Code Section 9283 which limits the number of signatories to the argument to five, prescribe a process or criteria for determining who should be selected to sign.

2. Arguments against the proposed ballot measure, if any, shall also be subject to the provisions of Elections Code Sections 9282 and 9287.

3. The deadline date and time for submitting arguments for or against the measure to the City Clerk is **August 13, 2026**, by **5:00 p.m.**, after which time no arguments for or against the measure will be accepted. Arguments for or against the measure **may not exceed 300 words** in length. Each argument shall be filed with the City Clerk, signed, and include the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument.

4. The City Clerk shall comply with all provisions of law establishing priority of arguments for printing and distribution to the voters, and shall take all necessary actions to cause the selected arguments to be printed and distributed to the voters.

B. Rebuttal Arguments.

1. Pursuant to Elections Code Sections 9285 and 9287, when the City Clerk selects the arguments for and against the City-initiated measure to be printed and distributed to the voters, the City Clerk will send a copy of the argument in favor of the measure to the authors of the argument against the measure, and a copy of the argument against the authors of the argument in favor of the measure.

2. The authors of the respective arguments for and against the measure or persons designated by them may then prepare and submit rebuttal arguments **not exceeding 250 words** in length. The deadline for submitting rebuttal arguments to the City Clerk is **August 24, 2026**, by **5:00 p.m.**, after which time no rebuttal arguments will be accepted. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

C. City Attorney's Impartial Analysis. Pursuant to Elections Code Section 9280, the City Council directs the City Clerk to transmit a copy of the measure to the City Attorney so that the City Attorney may prepare an impartial analysis of the measure, not to exceed 500 words in length. The impartial analysis shall explain what the measure will do if approved and enacted and how that impacts/changes existing law. The City Attorney shall transmit its impartial analysis to the City Clerk, who shall cause the analysis to be published in the voter information guide along with the ballot measure as provided by law. The impartial analysis shall be filed no later than **August 13, 2026**. In the event the entire text of the measure is not printed on the ballot, nor in the voter information portion of the sample ballot, there shall be printed immediately below the impartial analysis, in no less than 10-font bold type, the following: "The above statement is an impartial analysis of Ordinance or Measure. If you desire a copy of the Ordinance or Measure, please call the City Clerk's Office at (626) 579-6540 and a copy will be mailed at no cost to you."

D. Delivery of Materials. Any materials that must be submitted to the City Clerk must be delivered in person to the Office of the City Clerk located **at South El Monte City Hall, Office of the City Clerk, 1415 Santa Anita Avenue, South El Monte, California 91733**. Except as otherwise provided in this paragraph, materials delivered to the City Clerk must be delivered during regular business hours, which are Monday through Thursday from 7:00 a.m. to 5:30 p.m.

SECTION 7. Manner of Placement on the Ballot. The City Clerk has delegated discretion to direct the County to undertake one of the following placement options: (a) Print a 75 word abbreviated ballot measure text (prescribed by law) only; (b) Print a 75 word abbreviated ballot measure text and include Official Sample Ballot Notice advising voters to call the City Clerk's Office and request a free copy of the ballot measure enclosure (OR) that the City will be sending voters a supplemental mailing; or (c) Print a 75 word abbreviated ballot measure text and include Full Ballot Measure Enclosure Text in the Official Sample Ballot Booklet.

SECTION 8. City Clerk Tasks.

A. Delivery of Resolution to County: The City Clerk shall certify to the passage and adoption of this Resolution and enter it into the Book of Original Resolutions. The City Council directs the City Clerk to deliver copies of this Resolution, including the

Ordinance to the Clerk of the County's governing Board of Supervisors and to the Registrar-Recorder/County Clerk for the County of Los Angeles.

B. Publication of Ballot Measure Synopsis: As required by Elections Code Section 12111, the City Clerk shall publish a synopsis of the measure at least one time, no later than one week before the date of the November 3, 2026 election in a newspaper of general circulation in the City or as may otherwise be permitted by law. The notice shall be headed "Measure to be Voted On" in conspicuous type and shall be substantially in the following form:

"MEASURE TO BE VOTED ON
Notice is hereby given that the following measure is to be voted on at a general municipal election to be held in the City of South El Monte, on Tuesday, the 3rd day of November 2026.
[Text of synopsis of measure]
Dated _____

_____
City Clerk"

SECTION 9. Public Examination. Pursuant to Elections Code Section 9295, this measure will be available for public examination for no fewer than ten (10) calendar days prior to being submitted for printing in the voter information guide. The Clerk shall post notice in the Clerk's office of the specific dates that the examination period will run.

SECTION 10. CEQA. The City Council hereby finds and determines that the ballot measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment, and therefore is not a project within the meaning of the California Environmental Quality Act (Pub. Res. Code § 21000 *et seq.*) ("CEQA") and the State CEQA Guidelines (Cal. Code Regs., tit. 14, § 15000 *et seq.*) Section 15378(b)(5).

SECTION 11. Severability. If any provision of this Resolution or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the Resolution which can be given effect without the invalid provision or application, and to this end the provisions of this Resolution are severable. The City Council hereby declares that it would have adopted this Resolution irrespective of the invalidity of any particular portion thereof.

SECTION 12. Effective Date of Resolution. This Resolution shall take effect immediately upon its adoption. The City Clerk shall certify to the adoption of this Resolution which shall be effective upon its adoption. The City Clerk is hereby directed to file a certified copy of this Resolution with the County's governing Board of Supervisors and the Registrar-Recorder/County Clerk for the County of Los Angeles.

PASSED, APPROVED and ADOPTED on this 21st day of July 2026.

Gloria Olmos, Mayor

ATTEST:

Adrian Garcia, MMC, City Clerk

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) SS:
CITY OF SOUTH EL MONTE)

I, Adrian Garcia, City Clerk of the City of South El Monte, hereby certify that the foregoing Resolution No. 26-057, was duly passed and approved by the City Council of the City of South El Monte at a regular meeting of said Council held on this 21st day of July 2026, and that said Resolution was adopted by the following vote:

AYES:	Councilmember(s):	Acosta, Delgado, Rodriguez, Mayor Pro Tem Bojorquez and Mayor Olmos
NOES:	Councilmember(s):	None
ABSENT:	Councilmember(s):	None

Adrian Garcia, MMC, City Clerk





EXHIBIT "A"

FORM OF ORDINANCE

ORDINANCE NO. 1295

AN ORDINANCE OF THE PEOPLE OF THE CITY OF SOUTH EL MONTE, CALIFORNIA ADDING SECTION 2.04.025 TO CHAPTER 2.04 (CITY COUNCIL) OF TITLE 2 (ADMINSTRATION AND PERSONNEL) OF THE SOUTH EL MONTE MUNICIPAL CODE REGARDING TERM LIMITS FOR MEMBERS OF THE CITY COUNCIL

WHEREAS, the City of South El Monte ("City") is a general law city incorporated under the laws of the State of California; and

WHEREAS, California Government Code Section 36502(b) provides that the City Council of a general law city may adopt a proposal to limit the number of terms a member of the City Council may serve on the City Council upon approval by a vote of the City residents; and

WHEREAS, no such term limits shall apply to City Councilmembers unless and until such limits are approved by a majority of votes cast on the ballot measure at the November 3, 2026 City Election; and

WHEREAS, pursuant to Government Code Section 36502(b), such term limits shall apply prospectively only to those terms of office which commence on or after November 3, 2026; and

WHEREAS, at its Regular Meeting of June 2, 2026, the South El Monte City Council approved Resolution No. 26-037, which called for an Election to be held on November 3, 2026, and consolidated with the County-administered election(s) of the same date; and

WHEREAS, in addition to the election contests called for under Resolution No. 26-037, the City Council also called for South El Monte voters to consider a ballot measure and related ordinance that prospectively adopts City Council term limits; and

WHEREAS, the ballot question presented to South El Monte voters was as follows:

Term Limits Reform Measure Shall the terms served by the City Council in the City of South El Monte be limited to no more than four (4) four-year terms in their lifetime and where service for the unexpired balance of a vacated City Council seat	YES [ ]

(whether by appointment or election) will not count as service for a full four-year term even if such service is for less than four years in duration?	NO [ ]

WHEREAS, this Ordinance was provisionally approved by the City Council for first reading and second reading on July 21, 2026 and _____, 2026, respectively, subject to the requirement that the ballot measure authorizing the implementation of this Ordinance is in fact approved by South El Monte voters at a general municipal election held November 3, 2026; and

WHEREAS, the ballot measure seeking approval of this Ordinance was approved by a simple majority of votes cast at the City's municipal election of November 3, 2026, by a final count of _____ "Yes" votes (or _____% "Yes") to _____ "No" votes (or _____% "No"); and

WHEREAS, at its meeting of July 21, 2026, the City Council approved Resolution No. 26-057 which acknowledged the conduct of the November 3, 2026 municipal election, and declared the results of the same: the ballot measure authorizing the implementation of this Ordinance was approved by South El Monte voters.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF SOUTH EL MONTE, CALIFORNIA DOES HEREBY ORDAIN AS FOLLOWS:

SECTION 1. The recitals above are true and correct and incorporated herein by reference.

SECTION 2. Section 2.04.025 (Term Limits) is hereby added to Chapter 2.04 (City Council) of Title 2 (Administration and Personnel) of the South El Monte Municipal Code to read as follows:

Section 2.04.025 – Term Limits

A. *The purpose of this Section is to promote more competitive elections by ensuring that periodically the advantages of incumbency of a City Councilmember will yield to increased participation in seeking elected office and encouraging qualified candidates to seek public office.*

B. *Pursuant to the authority granted to the City under Government Code Section 36502(b), no person shall serve more than four (4) four-year terms (16 years) in their lifetime as a member of the South El Monte City Council.*

C. *For purposes of the term limits in this Section, any person who, either by appointment or election, serves a partial term as a member of the South El Monte City Council for any portion of a term, shall be deemed not to have served a full four-year term.*

D. The term limit established by this Section shall apply prospectively only to those terms of office which commence on or after November 3, 2026.

E. The City Clerk must reject, refuse to accept for filing, and otherwise refuse to process any nominating papers or other equivalent declaration of candidacy as required or authorized by law for persons if they are ineligible to hold public office pursuant to this Section.

F. This Section shall not be amended or repealed except by a majority vote of the voters of the City of South El Monte at a regularly scheduled election.

SECTION 3. If any provision of this Ordinance or the application thereof to any person or circumstance is for any reason held invalid, the remainder of this Ordinance and the application of such provision to other persons or circumstances shall not be affected thereby.

SECTION 4. This Ordinance shall become effective immediately upon the following conditions: (i) approval by the City Council; (ii) approval of the Ordinance by majority of the voters casting votes at the General Municipal Election of November 3, 2026; (iii) certification of all votes cast by the City Council confirming that a majority of the voters have approved this Ordinance; and (iv) confirmation of approval of this Ordinance by the City Council upon certification of election results.

SECTION 5. This Ordinance is not a "project" within the meaning of California Environmental Quality Action (Pub. Res. Code § 21000 *et seq.*) ("CEQA") because it will not result in a direct or reasonably foreseeable indirect physical change in the environment nor does it involve any commitment to any specific project which may result in a potentially significant physical impact on the environment.

SECTION 6. The Mayor shall sign and the City Clerk shall attest to the passage of this Ordinance, provided that this Ordinance shall not take effect unless the ballot measure adopting City Council term limits is approved by South El Monte voters at the November 3, 2026 Election, as confirmed by the canvass of election results. The City Clerk shall timely cause the same to be published in the official newspaper once the Ordinance becomes effective. The Ordinance shall become effective upon the City Council's approval of a resolution Reciting the Fact of the City's November 3, 2026 Election and Declaring the Results of the Same.

ADOPTED by vote of the People of City of South El Monte on the 3rd day of November 2026, and declared and certified by the South El Monte City Council on the ___ day _____, 2026.

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) SS:
CITY OF SOUTH EL MONTE)

I, Adrian Garcia, City Clerk of the City of South El Monte, California, do hereby certify that the foregoing is a full, true, and correct copy of Ordinance No. 1295, which was introduced for first reading by the South El Monte City Council ("City Council") at its Regular Meeting of July 21, 2026 and was approved by the City Council for second reading at its Regular Meeting of _____ 2026, subject to approval by South El Monte voters at an Election held November 3, 2026. Following the approval of this Ordinance by South El Monte voters as reflected in City Council Resolution No. _____ dated _____, 2026 which Recites the Fact of the November 3, 2026 Election and Declares the Results of the Same, the City Council finally approved this Ordinance by the following vote of the City Council:

AYES:
NOES:
ABSTAIN:
ABSENT:

_____
Adrian Garcia, MMC, City Clerk